

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUPP065669: MARITZA YVETTE VALENCIA, AS SUCCESSOR IN INTEREST
TO GUSTA VO VALENCIA CHAVEZ, et al. vs WONDERFUL CITRUS LLC, et al.**

09/15/2026 in Department 21

Motion to Strike Punitive Damages from Plaintiffs' Complaint for DEERE & COMPANY

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.) If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Deere and Company's Motion to Strike Punitive Damages from Plaintiff's Complaint (*Opposed*).

Tentative Ruling: GRANT Defendant Deere's Motion to Strike WITH LEAVE TO AMEND. The Court may use the following tentative ruling:

Defendant Deere and Company's Motion to Strike Punitive Damages from Plaintiff's Complaint is GRANTED.

Plaintiff will be granted 30 days leave to amend. Notice to be given by counsel for Defendant

Deere and Company within two (2) court days.

Discussion:

Defendant moves to strike punitive damages allegations from the Complaint which alleges or relates to punitive damages as follows:

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- Paragraphs 61 through 65, on pages 11 to 12, in their entirety;
- Paragraphs 72 through 76, on pages 13 to 14, in their entirety;
- Paragraphs 84 through 88, on page 15, in their entirety
- Paragraph 102, on page 18, the words, “and punitive damages;” and
- Section (F) of Plaintiffs’ prayer for judgment, on page 18, in its entirety.

Defendant Deere argues the Complaint does not plead sufficient facts alleging Defendant Deere acted with malice, fraud, or oppression, as required under California law to state a claim for punitive damages. Defendant further argues the allegations in Plaintiffs’ Complaint are conclusory, boilerplate, and fail to state specific facts against Defendant Deere that would constitute malice, oppression, or fraud. Finally, Defendant Deere argues the Complaint does not allege any facts specifically demonstrating that a specific director, officer, or managing agent of Defendant Deere committed, authorized, or ratified any prohibited conduct as toward Plaintiffs.

Defendant correctly argues, conclusions of law without factual support are insufficient to withstand pleading attack. See *Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 650; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1039; *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 510.

Malice means “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civil Code §3294(c)(1). Despicable conduct is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people [and] having the character of outrage frequently associated with crime.” (*Scott, supra*, at 716.) Stated another way, “punitive damages are appropriate if the defendant’s acts are reprehensible [and which] could be described as evil, criminal, recklessly indifferent to the rights of the [plaintiff], or with a vexatious intention to injure.” (*Food Pro International, Inc. v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994-995.) To establish conscious disregard, the operative pleading must include ultimate facts of defendant’s mindset, to wit: that the wrong was committed willfully or with a design to injure (aka “intent to vex, injure or annoy”), as opposed to negligently or mistakenly. (*Spinks v. Equity Residential Brianwood Apartments* (2009) 171 Cal.App.4th 1004, 1055; *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210.) The plaintiff must show “that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences.” (*Hoch v. Allied-Signal, Inc.* (1994) 24 Cal.App.4th 48, 61.)

Here, as was the case with Defendant Lawarence Tractor Company, there are no facts pled in the operative pleading permitting any such finding of malice, oppression, or fraud as it relates to someone in the employ of Defendant Deere. Moreover, as against any corporation, plaintiff must show that an officer, director or managing agent: (1) had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others; (2) authorized the bad act; (3) ratified the bad act; or (4) was personally (i.e., through controlling members) guilty of fraud, oppression or malice. (Civ. Code, §3294, subd. (b); *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1148-1149; in accord, *StreetScenes v. ITC Entertainment Group, Inc.* (2002) 103 Cal.App.4th 233, 242.) In sum, there are no facts showing

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despicable conduct by Defendant Deere, nor are there any facts alleging corporate approval or ratification of a despicable act.

Disposition:

The motion to strike the identified paragraphs and the prayer for punitive damages is GRANTED. Plaintiff will be granted 30 days leave to amend.

Notice to be given by counsel for Defendant Deere within two (2) court days.